

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: StaceyAnn McFarlane-Ross	Team: Squad #15	CCRB Case #: 201801021	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 02/03/2018 12:15 AM	Location of Incident: Outside of § 87(2)(b)	Precinct: 32	18 Mo. SOL 8/3/2019	EO SOL 8/3/2019	
Date/Time CV Reported Mon, 02/05/2018 10:51 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 02/05/2018 10:51 PM		
Complainant/Victim	Type	Home Address			
Witness(es)	Home Address				
Subject Officer(s)	Shield	TaxID	Command		
1. POF Beatriz Ceballos	24000	957440	032 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Danny Sun	20206	959280	032 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A.POF Beatriz Ceballos	Abuse: Police Officer Beatriz Ceballos threatened to arrest § 87(2)(b)				

Case Summary

On February 5, 2018, § 87(2)(b) filed this complaint via the CCRB online website.

On February 3, 2018, at approximately 12:15 a.m., § 87(2)(b) and § 87(2)(b) were asleep when they were awakened by PO Beatriz Ceballos and PO Danny Sun, from the 32nd Precinct, who responded to § 87(2)(b), in Manhattan in regards to a 911 call made by § 87(2)(b)'s roommate, identified by the investigation as § 87(2)(b). § 87(2)(b) exited the bedroom and spoke to PO Ceballos and PO Sun in which she informed them that § 87(2)(b) lived at the location for over 30 days and receives mail there. PO Ceballos stated that § 87(2)(b) had to leave the apartment as § 87(2)(b) did not want him in the apartment. Approximately 15 minutes later, § 87(2)(b) left the apartment in which PO Ceballos, PO Sun and § 87(2)(b) followed behind. Once downstairs, PO Ceballos and PO Sun left the location.

Approximately 15 minutes later, § 87(2)(b) called 911, explained what happened and requested for an officer to respond to the location. Within five minutes, PO Ceballos and PO Sun responded. While § 87(2)(b) PO Ceballos and PO Sun stood outside of § 87(2)(b) in Manhattan, § 87(2)(b) began using his cell phone to record the interaction he and § 87(2)(b) were having with PO Ceballos and PO Sun. As PO Ceballos spoke to § 87(2)(b) she told him, "You know what it is, if you come back, you're getting arrested from trespassing. We have been courteous to you" (**Allegation A- Abuse of Authority**, § 87(2)(g)). After the aforementioned statement, PO Ceballos and PO Sun left the scene.

During the course of the investigation, video footage recorded on § 87(2)(b)'s cell phone was obtained, which captured the allegation raised by § 87(2)(b) (BR 03, 08).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Beatriz Ceballos threatened to arrest

§ 87(2)(b)

§ 87(2)(b) testified (BR 01, 02, 04) PO Ceballos and PO Sun initially came to the apartment to have him be removed from the apartment. At the time PO Ceballos and PO Sun came, he was asleep. § 87(2)(b) exited the bedroom and spoke with PO Ceballos and PO Sun the entire time and after hearing PO Ceballos and PO Sun inform § 87(2)(b) that § 87(2)(b) had to leave the apartment, he walked out of the bedroom and the apartment without speaking to either PO Ceballos or PO Sun. Once outside, § 87(2)(b) contacted the police and PO Ceballos and PO Sun responded to the scene. At that point, PO Ceballos stated to him, "You know what it is, if you come back, you're getting arrested from trespassing. We have been courteous to you."

§ 87(2)(b) (BR 05) testified, when PO Ceballos and PO Sun initially came to the location and into the apartment, she learned from PO Ceballos that § 87(2)(b) contacted the police and informed them that § 87(2)(b) was trespassing. § 87(2)(b) showed PO Ceballos and PO Sun proof that § 87(2)(b) was living at the location at the time. After that, § 87(2)(b) eventually left the apartment and went downstairs in which PO Ceballos, PO Sun and § 87(2)(b) followed behind. At approximately 12:30 a.m. and at 1:15 a.m., § 87(2)(b) contacted the police and requested an officer to respond to the location to speak with her regarding the earlier interaction she had with PO Ceballos and PO Sun. Approximately one hour later, PO Ceballos and PO Sun

responded and informed § 87(2)(b) that § 87(2)(b) could not go to her shared apartment with § 87(2)(b) as he would be trespassing. PO Ceballos then stated to § 87(2)(b) “If you go up there, you’ll be trespassing and we’ll be arresting you.”

During the course of the investigation, the investigator was unable to obtain a sworn statement from § 87(2)(b) despite the many contact attempts (BR 12).

PO Ceballos (BR 07) testified that upon arriving at the scene, she and PO Sun spoke to a § 87(2)(b) who opened the apartment door and informed them in the doorway that § 87(2)(b) should not be in the apartment and that he was smoking marijuana. After that, § 87(2)(b) allowed PO Ceballos and PO Sun to enter the apartment. As PO Ceballos and PO Sun waited for § 87(2)(b) and § 87(2)(b) to exit their bedroom, § 87(2)(b) showed PO Ceballos a roommate agreement that was signed by § 87(2)(b) and § 87(2)(b) which listed the agreed upon days in which § 87(2)(b) was allowed to be in the apartment. A few minutes later, § 87(2)(b) exited the bedroom and spoke to PO Ceballos. She informed PO Ceballos that the agreement she was shown was not updated and § 87(2)(b) was aware that the days she had changed. Approximately 15 minutes later, § 87(2)(b) exited the bedroom and the apartment without speaking to either PO Ceballos or PO Sun. PO Ceballos explained she did not give any warning to § 87(2)(b). After § 87(2)(b) PO Ceballos and PO Sun were standing outside of the building, PO Ceballos and PO Sun left the scene. Within an hour she and PO Sun responded to a radio run at the same location. During the second visit, § 87(2)(b) wanted an explanation as to why § 87(2)(b) had to leave the apartment. PO Ceballos informed § 87(2)(b) that their main concern was for § 87(2)(b) as § 87(2)(b) was smoking marijuana in the apartment. PO Ceballos did not threaten to arrest § 87(2)(b) and did not recall making the following statements, “You know what it is, if you come back, you’re getting arrested from trespassing. We have been courteous to you” and “If you go up there, you’ll be trespassing and we’ll be arresting you.” She explained based on her recollection of the incident, no one could have been arrested. She further explained since § 87(2)(b) was a guest of § 87(2)(b) he was not considered to be trespassing.

PO Ceballos was shown the cell phone video footage (BR 08) which shows PO Ceballos identifying herself by name, command and shield number to § 87(2)(b). At 21 seconds, the video shows PO Ceballos stating, “You already know the deal. If you come back you’ll be arrested for trespassing.” PO Ceballos explained to the investigator, she did not recall making the aforementioned statement and further explained § 87(2)(b) was not considered to be trespassing as he was § 87(2)(b)’s guest.



201801021_20180410_1045_DM.mp4

During the course of the investigation PO Sun was not notified each time he was scheduled to appear at the CCRB. § 87(2)(g)

According to the New York State Penal Law, Section 140.05, a person is guilty of trespassing when he knowingly enters or remains unlawfully in or upon premises (BR 11).

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 10).
- PO Beatriz Ceballos has been a member of service for three years and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint
- As of April 3, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR 13).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date